

25LBCV02241 25LBCV02241

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-06

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Case Number: 25LBCV02241 Hearing Date: August 6, 2026 Dept: S27

1. Motion

for Summary Judgment

Defendant moves for summary judgment on Plaintiff's complaint. Plaintiff failed to timely file opposition papers.

The Court is concerned about notice of the motion. Defendant filed the moving papers on 5/15/26 and set it for hearing on 10/06/26. On 5/21/26, the Court granted Defendant's ex parte application to advance the hearing on the motion and rescheduled it for hearing on 8/06/26. The Court's minute order instructs Defendant to give notice. The Clerk's Certificate of Service shows the minute order was emailed to the attorneys for both parties. There is, however, nothing in the file establishing Defendant complied with its obligation to give notice. Compounding the matter, on 7/09/26, Plaintiff's retained law firm filed a notice of change of handling attorney, clarifying that the attorney upon whom the minute order was email served is no longer assigned to the lawsuit.

In an abundance of caution, the Court is continuing the hearing on the motion for one month, to Thursday, 9/03/26 at 8:30 a.m. in Department S27. Defendant must promptly give notice of the continuance.

2. Motion

to Seal

Defendant lodged the dealer

agreement between itself and Scott Robinson Honda with the Court and seeks an order permitting the document to be filed under seal. Defendant must lodge the document using the locked document function in eCourt prior to the continued hearing date so the Court can review the document and determine whether the motion to seal should be granted. The hearing on the motion to seal is also continued to 9/03/26 to be heard with the motion for summary judgment.

3. Note

re: FSC and Trial

The FSC is scheduled for 9/04/26
and the trial is scheduled for 9/08/26.

The Court is not continuing those dates at this time. The parties must be prepared for trial in the event the summary judgment motion is not granted.

Defendant is ordered to give notice.